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IN THE COURT OF APPEALS
FOR THE FIFTH DISTRICT OF TEXAS
AT DALLAS

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IN RE MARRIAGE
MALCOLM JOHNSON
Appellant,

v.

VERONICA POWELL-JOHNSON,
Appellee.

On Appeal from the 255th Judicial District Court of Dallas County, Texas

No. DF-19-12398

APPELLEE'S BRIEF ON THE MERITS

Respectfully submitted,

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STATEMENT REGARDING ORAL ARGUMENT

This appeal does not present unique legal issues. While the record is somewhat convoluted, the evidence reflected therein is not particularly complex or unusual. Rather, the record consists of evidence regarding the marital estate and factors supporting a disproportionate division of that estate favoring the wife. There were no contested property values at the trial court as Appellant failed to prepare an inventory and appraisement. Appellant further failed to respond to interrogatory and disclosure requests, and submitted inadequate documents in response to production requests.

One of Appellant's grounds for appeal involves the performance of Appellant's trial counsel. Since that is not an issue for appeal, there is no need for oral argument on this issue. This appeal involves issues this Court has resolved many times before, and without the need for oral argument.

That being said, Appellee conditions her request for oral argument upon Appellant's request for same and in the event that this Court orders oral argument.

STATEMENT OF THE CASE

Nature of the Case:	This case is a nightmare divorce without children, resulting in a just and right division of the known community estate.
Bench Trial Proceedings:	**On February 27, 2020,** an approximately two-hour bench trial was held, and proceedings adjourned at 11:47 a.m. with Honorable Kim Cooks, Judge Presiding. RR 1:1 and 1:47.
Motion New Trial:	**On March 23, 2020** Petitioner filed a motion for new trial alleging ineffective assistance of counsel. CR1 282-283.
Bench Trial Disposition:	**On April 3, 2020** Honorable Kim Cooks signed a Final Decree of Divorce with a just and right division of the known marital estate after listening to the parties testify and using her judicial discretion to judge the veracity of the witnesses. CR 1:286-293.
New Trial Proceedings:	**On April 14, 2020** hearing was held with Honorable Kim Cooks presiding. RR2 1-21. Honorable Kim Cooks denied petitioner's request for new trial. RR2 21.
New Trial Disposition:	**On April 17, 2020** Judge Cooks signed the Order Denying Motion for New Trial. CR1 295.

ABBREVIATIONS AND RECORD REFERENCES

***Abbreviations*:**

1. Appellant Malcolm Johnson shall be referred to as **"Malcolm"** or **"Appellant."**

2. Appellee Veronica Powell-Johnson shall be referred to as **"Veronica"** or **"Appellee."**

***Record References*:**

1. The Clerk's Record will be referred to as "CRv p#-p##" and will be cited by pages as follows:

Date Filed	Court's Document Name	Referred to in Brief as	Total Pages
07/22/2020	*CR	CR1	309
09/22/2020	*Supp CR #3	CR3	20
10/12/2020	*Supp CR #2	CR2	45
10/12/2020	*Supp CR #4	CR4	30
10/19/2020	*Supp CR	CR5	98
not yet filed, just requested one missing Order	Unknown at this time	CR6	Unknown at this time

2. The Reporter's Records will be referred to as "RR" and will be cited by volume and page numbers, where applicable. (RRv p#:p##).

STATEMENT OF FACTS

Events leading up to filing of divorce

A. **In September 2011,** Veronica and Malcolm were married on September 6, 2011 in Las Vegas. During their honeymoon they made intimate videos. CR1 23-40.

B. **In January 2018,** Veronica found out that Malcom had given her two lifelong diseases, Herpes 1 and Herpes 2. The couple worked through the issue and continued in the marriage. CR1 23-40.

C. **In October 2018,** Veronica found out that Malcolm had given her a third sexually transmitted disease. Veronica was prescribed medication, and the third disease was cured. She continued in the marriage. CR1 23-40.

D. **February 2019,** Veronica realized that her marriage was not getting better and needed to prepare herself for divorce. Veronica had a lapse in judgement and out of panic she used a pretext that allowed her to obtain $12,900 from her 401K. RR1 17-22. The Trial Court found that Veronica used the money to pay community debt. CR3 9-9.

E. **On May 5, 2019,** Veronica deleted the intimate honeymoon videos of her and Malcolm. Malcolm broke two pictures hanging on the wall and threw a large metal stand. Malcolm physically assaulted Veronica by choking her. Veronica went to the hospital and the hospital reported the assault to police.

Veronica told Malcolm the marriage was over, and he responded likewise. CR1 23-40 and RR1 23-24 and RR1 Exhibit R3 66-68.

F. **On May 16, 2019**, Malcolm texted images of the documents Veronica used to remove her 401k funds, and said he was calling John Hancock.

G. **In May 2019,** Veronica met with an attorney about a divorce on May 23rd. Veronica and Malcolm agreed to divorce and sell their home on Blackfoot in Mesquite. CR1 23-40.

H. **In late May early June 2019,** Malcolm put cameras up on the inside of their home. He removed the realtor sign from the front yard twice. He began selling the parties personal community property. CR1 23-40.

I. **On June 5, 2019** Malcolm and Veronica enter into a listing contract for 1808 Blackfoot Trail for 300,000.00 with Redfin. CR1 55-64.

J. **On June 14, 2019,** Malcolm asked Veronica to sign refinance papers on the Tahoe. Veronica refused and Malcom raged, cussing and belittling Veronica, pulled the realtor sign out of the yard again and removed the front doorknob from the door to remove realtor's lockbox. Malcolm announced to Veronica that she better not put the sign back up and the house would be sold when he was ready. CR1 23-40.

K. **On June 20, 2019,** Malcolm filed Original Petition for Divorce. CR1 13. Malcolm texted Veronica that he was moving out. CR1 23-40.

Events after filing Original Petition for Divorce

L. **<u>On June 23, 2019,</u>** Malcolm took his work clothes, other clothes, personal items, gun, Yukon, and camper and left the home. CR1 23-40.

M. **<u>On June 25, 2019</u>, Veronica** came home from work and Malcolm had been in the house. He took more of his clothes from the hamper, other miscellaneous items, and removed the foil from the camera in the trees. CR1 23-40.

N. **<u>On June 27, 2019</u>**, Veronica filed Respondent's Original Answer. CR1 21-22. **<u>On the same day,</u>** Malcom came in the home unannounced. Veronica locked the office door when she heard him. Malcolm forced the door open, breaking the wood door jamb. Veronica called the police. The police came and told Veronica to leave for the night and report this incident to the detective from the May 5th incident. He came in the home two more times on July 7th and July 9th. CR1 23-40.

O. **<u>On June 30, 2019</u>** Parties receive offer at listing price with preapproved financing. CR1 73-89.

P. **<u>On July 11, 2019</u>,** Veronica filed Original Counter Petition for Divorce and Application for Ex Parte Temporary Restraining Order. CR1 23-40.

Q. **<u>On July 11, 2019</u>**, Malcolm filed Objection to Ex Parte Hearing and to Veronica's Application for a Temporary Restraining Order. CR1 41-44.

R. **<u>On July 11, 2019</u>**, Judge signed Veronica's Temporary Restraining Order and Order Setting Hearing for Temporary Orders. The hearing was set for the following day, July 12, 2019. The Temporary Restraining Order restrained Malcolm from coming within 500 feet of Veronica and the Blackfoot residence, intentionally communicating with Veronica in person or any manor with intent to annoy or alarm Veronica. The Temporary Restraining Order also included excluding Malcolm from Veronica's car or keeping Veronica from using the residence on Blackfoot. CR1 45-47.

S. **<u>On July 12, 2019,</u>** The Judge signed an extension of the Temporary Restraining Order to July 22, 2019 when hearing on Temporary Restraining Order and Temporary Orders could be heard. CR1 48-50.

T. **<u>On July 15, 2019,</u>** Veronica filed an Emergency Motion for Appointment of Receiver because she had received another full price offer and Malcolm would not agree. Veronica lost that offer. CR1 52-89.

U. **<u>On July 18, 2019,</u>** Malcolm filed an Amended Petition requesting an injunction against Veronica. He also requested that Veronica reinstall the exterior security system and give Malcolm access to monitor the home. Malcolm further requested that neither he nor Veronica would impede the sale of the residence at $315,000.00 because he knew the home would not sell for $315,000.00. Malcolm had impeded the sale of the home from the

beginning because he had no intention of selling the home. The home was another tool for Malcolm to use to control Veronica. Malcolm requested retrieval of his belongings from the house. CR1 94-110.

V. **On July 18, 2019,** Malcolm filed a request for Jury Trial to delay case. CR1 111-111.

W. **On July 22, 2019,** A hearing on Temporary Restraining Order and Temporary Orders was held before the Associate Judge. The Associate Judge's Report is not in the Clerk's Record; however, the Temporary Orders from the July 22, 2019 hearing are in the Clerk's Record. CR1 192-195.

X. **On July 23, 2019,** Malcolm's attorney, Ben Boothe, filed an Agreed Motion to Withdraw, signed by Malcolm, with deadlines attached as Exhibit A, and which represented Malcolm had told him he was filing Bankruptcy and not paying him. CR1 112-116. **On the same day,** an Order of Withdraw was presented again informing Malcolm of the deadlines ordered by Judge in the July 22, 2019 hearing, including but not limited to spousal payments (which he did not pay) and exchange of Inventory and Appraisement (which he never offered). CR1 239-239.

Y. **On July 24, 2019,** Malcolm's second attorney, Paul Gomez appeared on record. CR1 120-120.

Z. **On July 25, 2019,** Malcolm files his Request for a DeNovo Hearing to

appeal the Associate Judge's ruling from July 22, 2019. CR1 121-122

AA. **On July 29, 2019,** Veronica files Motion to Deny a DeNovo due to lack of specificity in DeNovo request. CR1 128.

BB. **On August 5, 2019,** Veronica filed a Business Records Affidavit with her medical records.CR1 130-181.

CC. **On September 20, 2019,** Veronica filed an emergency Motion to Modify Temporary Orders and Motion for Further Temporary Orders. CR 182-184

DD. **On September 26, 2019,** Veronica propounded interrogatories, production, and disclosures on Malcolm. CR1 205-206.

EE. **On October 16, 2019,** the Temporary Orders from July 22, 2019 were signed by the Judge. Malcolm most, but not all, of his previously ordered and unpaid spousal support. **On the same day** hearing was held on Veronica's Motion for emergency Temporary Orders and Motion for Further Temporary Orders was heard. The Ruling and Agreement were as follows: The parties both agree, and IT IS ORDERED that Attorney KAREN M. BILLINGHAM is appointed as Power of Attorney for VERONICA POWELL-JOHNSON and PAUL GOMEZ is appointed as Power of Attorney for MALCOLM GREGORY JOHNSON for the purpose of selling the parties residence and property located at 1808 Blackfoot Trail, Mesquite Texas 75149. The parties agree to this appointment. The parties agree that Redfin Real Estate Agent

ROB CLARK shall be used to list and sell the residence. The net sales proceeds from the sale of the residence and property shall be put in escrow with the court until final trial or agreement of parties unless there is an agreement directing other distribution signed by both attorneys and both parties and filed with the court. At Court MALCOLM JOHNOSN tendered to VERONICA POWELL-JOHNSON $2,580 by Cashier's Check and $1,300 in cash toward the four payments previously ordered and now due of $1,285 each, totaling $5,140 owed. MALCOLM GREGORY JOHNSON shall pay the remaining $1,200 by 5pm on October 17, 2019 in cash or cashier's check at Attorney Billingham's Office – 18601 LBJ FRWY #401, Mesquite, TX 75150. He will continue timely monthly payments as previously ordered in court on July 22, 2019 until the house is sold and these payments relate back to the July 22, 2019 hearing. The parties agree and IT IS ORDERED that both sides file with the court and exchange sworn Inventory & Appraisements with supporting documents by 10-23-2019. MALCOLM GREGORY JOHNSON agrees he shall respond to Discovery Request propounded on 09-26-2019 by 10-26-2019, and it is so ORDERED. CR1 196-196 and CR1 198-200.

FF. **<u>On October 29, 2019,</u>** Veronica files her sworn Inventory and Appraisement. The parties agreed and it was ordered on October 16, 2019 to

file and exchange Inventory and Appraisements. Malcolm never filed his sworn Inventory and Appraisement, nor did he provide the Inventory and Appraisement to Veronica at any time during the divorce action. CR2 4-40.

GG. **On November 1, 2019,** The parties appeared at Court Ordered Mediation with Patrick Rodgers. Malcolm came to mediation with limited production responses, no other discovery nor an Inventory and Appraisement. CR1 208-230. Veronica did not believe we had a true value of the community estate because of Malcolm's lack of participation in the divorce. Patrick Rogers filed a letter of impasse with the Court. CR1 201.

HH. **On January 21, 2020,** Veronica files a Motion to Compel Discovery and Request for Sanctions. CR1 205-230. Malcolm had earlier been ordered and agreed to produce his discovery responses by October 26, 2019 at the October 16, 2019 hearing for additional temporary orders. CR1 196 & 198-200).

II. **On January 28, 2020,** Hearing was held on Motion to Compel Discovery. Malcolm appeared, but his attorney did not. Malcom stepped out of Court to call his attorney but never came back in Courtroom. Hearing was held without Malcolm and his attorney and Malcolm was ordered to produce his responses. The Associate Judge's Report was very instructional on what Malcolm was to produce by February 7, 2020 All objections were

waived. CR1 231-234.

JJ. **<u>On February 14, 2020,</u>** Veronica filed ten-day letter to attorney to sign proposed Order to Compel and Sanctions. CR1 235-235.

KK. **<u>On February 26, 2020,</u>** the Court signed Order to Compel and Sanctions from the January 28 hearing. CR1 236-238.

LL. **<u>On February 27, 2020,</u>** Trial was held. Moments before going on the record, Malcolm produced to Veronica some documents. Judge entered trial memorandum/ruling. CR1 239-239 and RR1.

MM. **<u>On March 11, 2020,</u>** Malcolm's third attorney, Allen Roach, filed an appearance. CR1 240-240.

NN. **<u>On March 16,2020,</u>** Veronica sent proposed final decree of divorce to Malcolm's new attorney of record and filed a copy of the ten-day letter with the Court. CR1 214-251.

OO. **<u>On March 17, 2020,</u>** Veronica filed a Motion to Enter Final Decree of Divorce. CR1 252-261.

PP. **<u>On March 23, 2020,</u>** Malcolm filed a Motion for New Trial. In that motion Malcolm states, "Petitioner provided answers and documents to his previous counsel in response to discovery requests, but they were not served timely or in proper form." But Petitioner provides no proof of when he delivered answers and documents to his attorney. Petitioner's request is based on

ineffective assistance of counsel. CR1 282-283.

QQ. **<u>On April 3, 2020,</u>** Court signed the Final Decree of Divorce which shows Malcolm's claim of Veronica receiving 100% of the community property to be false. CR1 286-293.

RR. **<u>On April 17, 2020,</u>** hearing on Malcolm's Motion for New Trial was held and the Trial Court denied Malcolm's Motion.

SS. **<u>On April 30, 2020,</u>** Veronica entered into a full price contract for sale of home with a closing date of June 1, 2020. CR5 17-30.

TT. **<u>On May 1, 2020,</u>** Malcolm's fourth attorney, Lindsey Rames appeared as counsel on appeal. CR1 296-296.

UU. **<u>On May 4, 2020,</u>** Malcom files Notice of Appeal. CR1 300-301.

VV. **<u>On May 7, 2020,</u>** Malcolm recorded a Lis Pendens with the County Clerk Real Property Records on the real property 1808 Blackfoot to notify prospective buyers of the pending appeal, which effectively stopped the sale of the real property. CR5 31-32.

WW. **<u>On May 11, 2020,</u>** Malcolm tries to force Veronica into an agreement to settle the appeal with him, CR5 33-33.

XX. **<u>On May 20, 2020</u>**, Malcolm files request with Appellate Court a request that sale proceeds from the residence be placed into the registry of the court. Appellate Court denies request. CR5 36.

YY. **<u>On May 22, 2020</u>** Veronica sends proposed order to Malcolm where the parties agree the proceeds of the sale of the house may be deposited into the registry of the court pending appeal. Veronica is trying to prevent loss of the sale contract that was earlier signed with a closing date of June 1, 2020. CR5 37. Malcolm does not sign, even though this is what he just asked the Appellate Court to order.

ZZ. **<u>On May 29, 2020,</u>** Veronica files an emergency Ex Parte Application for Order Approving Sale of Property and Motion for Temporary Order Pending Appeal in hopes that the closing on the sale of the home could be completed the next day and the proceeds of the sale would be deposited into the Court's registry. CR5 9-35.

AAA. **<u>On June 1, 2020,</u>** Malcolm filed his response to Veronica's Emergency Ex Parte Motion and in his response, he requests the Court to deny the application to sell the home. Impeding the sale of the home again and causing the need for Veronica's request for more spousal support. CR5 39-41.

BBB. **<u>On June 8, 2020,</u>** Malcolm files Petitioner's Response to Respondent's Emergency Motion for Temporary Orders Pending Appeal alleging Respondent's request for temporary orders was inappropriate and stated his reasons why. CR5 42-63.

CCC. **<u>On June 11, 2020,</u>** Veronica filed Respondent's Reply to Petitioner's Response Filed 6/8/2020. In her filing, Veronica provides Arguments and Authorities discrediting Petitioner's allegations. CR5 67-72.

DDD. **<u>On June 12, 2020,</u>** Veronica entered into a lease agreement with the buyers because she did not want to lose the sale due to Lis Pendens and court proceedings. Veronica files a Motion to Cancel Lis Pendens in hopes of being able to complete the sale of the real property. The motion offers relief to protect Malcolm's interest, if any, in the home if appeal is granted. CR5 73-75.

EEE. **<u>On June 16, 2020,</u>** the Associate Judge ruled in favor of Veronica selling the home, but finds he cannot remove the Lis Pendens, thus Malcolm's Lis Pendens continues to block the sale. CR5 76-77.

FFF. **<u>On June 19, 2020</u>**, Malcolm files a response to Respondent's Motion to Cancel Lis Pendens. In this pleading Malcolm wants to block the sale of the home even though Veronica has plead that she would put the proceeds from the sale in the Court's Registry and relieve Malcolm of his obligation of spousal support ordered on June 16, 2020. CR5 78-88. On the same day Malcolm files Petitioner's Motion for Reconsideration of Findings Granting Respondent's Spousal Support and Appellee's Attorney Fees. CR5 89-94.

GGG. **<u>On June 24, 3030,</u>** The Court finds that Veronica's motion for temporary

orders was filed timely and that she has the right to stay in the home and sale the home. All proceeds from the sale are to be put in the Court's registry. The Court Orders Malcolm to pay $1,100 per month for spousal support beginning July 1, 2020 and each month thereafter during the appeal until the house sells. Malcolm has paid nothing to date. The Judge also Ordered that Malcolm pay $14,000 of Veronica's attorney fees if he loses appeal. Those are handwritten notes on the Order made by the Judge. Appendix 1 (and also being requested to be added to the clerk's record).

APPELLEE'S BRIEF

TO THE HONORABLE JUSTICES OF THE FIFTH COURT OF APPEALS:

Appellee, Veronica Powell-Johnson ("Veronica"), submits her brief in response to Appellant Malcolm Gregory Johnson's ("Malcolm") Brief.

OBJECTIONS TO AND MOTION TO STRIKE APPELLANT'S SUPPLEMENTAL APPENDICES 8 & 9 AND ANY REFERENCE TO THOSE APPENDICES

Before addressing the merits of the issues raised by Malcolm in his Appellant's Brief, Veronica specifically objects to Malcolm's brief appendices 8 and 9 and any reference to and reliance upon those documents in his brief as those documents are not part of the formal appellate record. Appellant makes no justification for attaching documents which are not part of the formal appellate record and cites no case law allowing such documents.

It is well established that documents attached to an appellate brief, which are not part of the formal appellate record, may not be considered by the appellate court. *See Warriner v. Warriner*, 394 S.W.3d 240, 254 (Tex. App.—El Paso 2012, no pet.) (holding that documents attached to a brief as an exhibit or an appendix, but not appearing in the record, cannot be considered on appellate review); *Fox v. Wordy,* 234 S.W.3d 30, 33 (Tex. App.—El Paso 2007, pet. dism'd w.o.j.) (refusing

to consider appellant's affidavit attached to brief because it was not part of the appellate record); *Cantu v. Horany*, 195 S.W.3d 867, 870 (Tex. App.—Dallas 2006, no pet.) (granting appellee's motion to strike portions of appellant's brief referring to documents outside record). The appellate record consists of the clerk's record and, if necessary to the appeal, the reporter's record. Tex. R. App. P. 34.1.

Malcolm's Appellant's Brief's appendices 8 and 9 relate to sanctions Malcolm brought against his trial attorney following conclusion of trial, and these are not included in the formal record on appeal.

Attaching documents as exhibits or appendices to briefs is not formal inclusion in the record on appeal, and therefore, the documents outside the formal appellate record cannot be considered. *Fox,* 234 S.W.3d at 33. Accordingly, Veronica requests this Court not to consider the documents labeled Appx. 8 and Appx. 9 and attached to Malcolm's brief as they are not a part of the formal appellate record in this case. Veronica also requests this court to strike and not consider any arguments and references to those documents Malcolm's brief in support of his arguments.

OBJECTIONS TO APPELLANT'S STATEMENT OF CASE

Appellant's Statement of the Case contain inappropriate references to matters not before the trial court that revolve around what Malcolm's trial attorney did not do. This issue is not grounds for a new trial or for an appeal.

Also, of note, there was a fifth clerk record (fourth supplemental) filed on October 19, 2020, but which Malcolm appears unaware of.

SUMMARY OF ARGUMENT

Preliminary Note re Appellant's Brief: Throughout Appellant's Brief it states, in various ways, that Veronica was awarded 100% of the community property *or* that she testified to why she believed she deserved 100% of the community estate. See Appellant's Brief pages 4, 11, 19, 37, 55. Appellant's Brief, however, states accurately on pages 40, 42, and 48 that Veronica asked for and received 100% of the marital home. This is a confusing and disconcerting misstatement of fact.

Reply Issue 1:

Sufficient evidence supports the Trial Court's finding of fault against Malcolm for cruelty and/or adultery so there was no abuse of discretion by the Trial Court. The Trial Court considered the following evidence.

- Consider Veronica's pleadings and testimony for actual damages, past and future, as well as exemplary damages for assaulting her, which supports allegations of cruelty;
- Consider Veronica's pleadings and testimony for actual damages, past and future, as well as exemplary damages for threatening her with imminent bodily injury;
- Consider Veronica's pleadings and testimony for actual damages, past and future, as well as exemplary damages for transmitting sexual diseases to her, and considering this as evidence of adultery;
- Consider the testimony regarding Malcolm's display of anger by tearing the Redfin sign out of the ground and taking the front door apart to remove the key box from the door;

- Consider testimony regarding Malcolm's behavior in thwarting the sale of the home multiple times before trial and during this appeal;

- Consider the unknown assets Malcolm refused to disclose to the point that Veronica simply wanted to go forward with trial, even without a full picture of assets, praying she would get the home and he could keep whatever he was hiding; and

- Consider multiple *Murff* factors in making the just and right division, all of which support the actual division. *See Murff v. Murff,* 615 S.W.2d 696, 699 (Tex. 1981) for a list of the well known and often cited, nonexclusive, Texas Murff factors. (Hereafter they may be referred to only as the "Murff factors").

Furthermore, the trial court's property division was not punitive against Malcolm because the trial court based the division on multiple factors including the fact that Malcolm's behavior during the divorce increased Veronica's attorney fees.

Reply Issue 2: While Veronica is having trouble distinguishing Issue 2 from Issue 1, Veronica asserts the evidence is legally and factually sufficient to support the trial court's granting of the divorce on fault grounds, including cruelty, other Murff factors, and her tort claims of assault and sexually transmitted diseases, and rendering a disproportionate portion of the ***disclosed*** community property to Veronica.

Reply Issue 3: Veronica believes this issue should be stricken from Malcolm's brief as this is not a ground for new trial or appeal.

Reply Issue 4: The Associate Judge used appropriate discretionary powers in granting Veronica attorney fees as requested in her Motion for Temporary Orders During Appeal (CR5 11, item d) and the Associate Judge modified his ruling by hand on the formal order, which is being attached as Appendix 1, so that these fees only become due on the unsuccessful appeal of Malcolm. Malcolm did not ask for attorney fees on successful appeal before the trial court.

Veronica cannot find this Order in the clerk's record and she has filed a request for it to be formally produced by the clerk.

ARGUMENT & AUTHORITIES

A. STANDARD OF REVIEW—ABUSE OF DISCRETION.

Most family law appealable issues are evaluated for abuse of discretion by a trial court. *In re A.B.P., 291 S.W.3d 91, 95* (Tex.App.-Dallas 2009, no pet.) A trial court abuses its discretion when it acts arbitrarily or unreasonably, or without any reference to guiding rules and principles. Worford v. Stamper, 801 S.W.2d 108, 109 (Tex.1990) (per curiam). In an appellate factual sufficiency review, all the evidence in the record, both supporting and contrary to the trial courts' finding is examined. See *Ortiz v. Jones*, 917 S.W.2d 770, 772 (Tex.1996) (per curiam); *In re C.A.S.*, 405 S.W.3d 373, 382–83 (Tex.App.-Dallas 2013, no pet.). Reversal on appeal is granted only if the trial court's finding misapplied the law, or is so against the great weight of the evidence as to be clearly wrong and unjust. *Id.*

When determining if the trial court abused its discretion, the appellate court considers whether the trial court (1) had sufficient evidence upon which to exercise its discretion, and (2) erred in its application of that discretion. *Moroch v. Collins,* 174 S.W.3d 849, 857 (Tex.App.-Dallas 2005, pet. denied). A trial court does not abuse its discretion if there is some evidence of a substantive and probative character to support the decision. *Id.*; see also *In re C.A.S.*, 405 S.W.3d at 383.

Trial courts are tasked with dividing the community estate in a "just and right" manner, considering the rights of both parties. Tex. Fam. Code Ann. § 7.001

(https://statutes.capitol.texas.gov/Docs/FA/htm/FA.7.htm) *See* Appendix C; *Moroch* 174 S.W.3d at 855. Thus, a trial court would abuse its discretion in dividing community property if that property was not divided in a just and right manner. Trial courts are afforded wide discretion in dividing marital property upon divorce and, absent an abuse of discretion, this Court will not disturb the property division. *Murff*, 615 S.W.2d at 698; *Chavez v. Chavez*, 269 S.W.3d 763, 766 (Tex. App.—Dallas 2008, no pet.). "Equality in the division is not required, and this Court indulges every reasonable presumption in favor of the proper exercise of discretion by the trial court in dividing the community estate." *Toles v. Toles*, 45 S.W.3d 252, 264 (Tex. App.—Dallas 2001, pet. denied). Appellate courts reverse only if the record demonstrates the trial court clearly abused its discretion, and the error materially affected the just and right division of the community estate. *Jacobs v. Jacobs,* 687 S.W.2d 731, 732–33 (Tex.1985).

However, the abuse of discretion measure of a trial court's ruling does not apply to issues brought up on appeal that are not valid appealable issues, such as ineffective assistance of counsel. This is not a ground for appeal, as the relief for Appellant in this instance is suing Appellant's trial attorney for malpractice. Abuse of discretion is also not a standard when the Appellant complains about relief a trial court granted to Appellee, when Appellant never requested his own relief

from the trial court. Appellee cannot say similar relief should be granted to him on appeal when he never requested such relief from the trial court.

B. REPLY ISSUE I

Evidence supports the Trial Court finding Malcolm at fault for the divorce on the grounds of adultery and/or cruelty.

Reply Issue I, Point B.

Malcolm incorrectly argues that the first mentioned ground for divorce is the only ground, misunderstanding that a court's later rulings may add to the grounds for divorce.

Malcolm, in his Appellant Brief on page 31 (Issue I, point B), focuses on the differences in the grounds for divorce as found in **(1)** the Trial Court's Memorandum Opinion (CR1 251), **(2)** the Final Decree of Divorce (CR1 255), **(3)** the Trial Court's initial findings and conclusions (CR3 4), and **(4)** the Trial Court's supplemental findings (CR3 7 & 8). Malcolm uses these differences to incorrectly conclude that he was found not at fault for the divorce since the Trial Court's ruling memorandum and the decree only listed the ground of insupportability.

Malcolm, however, fails to acknowledge that under well-established decisional precedent, any conflict between the original findings and later findings are resolved definitely in favor of the later findings. See *Redman v. Bennett,* 401 S.W.2d 891 (Tex. Civ. App. — Tyler 1966, no writ); *Anderson v. Geraghty,* 212 S.W.2d 972, 974 (Tex. Civ. App.-San Antonio 1948, no writ). The later findings merely state other grounds for the divorce, i.e., adultery and cruelty, in addition to

insupportability. So, this is not the absolution Malcolm is searching for and his divorce was not granted solely on the ground of insupportability. Of note, Malcolm states no legal precedent for this particular argument. Therefore, this Court should overrule Appellant's issue I, point B.

Reply Issue I, Point C:

The evidence is legally and factually sufficient to support the trial court's granting of the divorce on fault grounds.

Veronica and Malcolm were married on September 6, 2011. CR1 13 and 24. At trial Veronica testified she had never had any sexually transmitted diseases until January 2018. RR1 30, lines 13-21. On January 15, 2018 Veronica went to the Doctor and a vaginal sample was collected, tested, and returned with a positive index for both Herpes Simplex 1 and Herpes Simplex 2. CR1 175. Then on October 17, 2018 another vaginal sample was taken, tested, and returned positive for Mycoplasma hominis. CR1 171. Further, at trial Veronica's sister, Vanessa, testified about Veronica sending her a picture of a blue pill and that Vanessa advised Veronica the pill was for herpes. RR1 8, lines 3-8.

Malcolm, however, testified he told Veronica on May 9, 2008 that he had herpes. RR1 41 lines 2-10. He also denied ever having Mycoplasma hominis and testified that he had been faithful. RR1 41, lines 11-25.

A divorce may be granted in favor of one spouse if the other spouse has committed adultery. Tex. Fam. Code Ann. § 6.003

(https://statutes.capitol.texas.gov/Docs/FA/htm/FA.6.htm) *See* Appendix B. "Adultery," in a divorce means the voluntary sexual intercourse of a married person with one not a party to the marriage. *Bell v. Bell,* 540 S.W.2d 432, 435 (Tex. Civ. App.-Houston [1st Dist.] 1976, no writ). Adultery may be shown by direct or circumstantial evidence. *Newberry v. Newberry,* 351 S.W.3d 552, 556 (Tex. App.--El Paso 2011, no pet.). Mere suggestion and innuendo, however, are insufficient; clear and positive proof is necessary. *In re S.A.A.,* 279 S.W.3d 853, 856 (Tex. App.-Dallas 2009, no pet.). Adultery is not limited to actions committed before the parties separated. *Bell,* 540 S.W.2d at 435

Bear in mind that the trial court had "the opportunity to observe the parties on the witness stand, determine their credibility, evaluate their needs and potentials, both social and economic." *Murff,* 615 S.W.2d at 700 (Tex.1981). The sudden and surprising development of sexually transmitted diseases by Veronica in 2018 provides more than a scintilla of evidence that Malcolm had at minimum a sexual encounter with another person. The Trial Court listened to the testimony of Veronica and Malcolm, judged their credibility, and did not err when it granted Veronica a divorce on the ground of adultery. Accordingly, this Court should overrule Appellant's issue I, Point C.

Reply Issue I, Point D.

The evidence is legally and factually sufficient to support the trial court's granting of the divorce on the fault ground of cruelty.

In her affidavit attached to her counterpetition, Veronica relates a physically violent incident which occurred on May 5, 2019 where Malcolm ends up choking her. CR1 34.

> "Then he grabbed a 3-foot decorative metal stand and came charging down the stairs at me screaming bitch I'm sick of your shit. He broke two pictures hanging on the stair wall as he was coming at me. He continued to charge me with this 3-foot decorative metal stand. I was certain he was going to hit me with it. I was very scared and all I could do was scream and shield my face. He threw the metal stand to the side and it landed in the formal living room. He pushed me to the wall and started choking me. I thought I was going to die! I was in total shock of what just happened." *Id.*; also see Respondent's Exhibit 3, CR1 66 – 69 (damage and broken items following choking incident).

While this was the roughest incident between the two, it was not the only instance of cruelty. Veronica recounts "There has always been emotional and verbal abuse in our marriage towards me from Malcolm, but never physical abuse, until the events of May 5. *Id.*

Then she recounts the following incident from June 14, 2019:

> "He began harassing me at work with phone calls and text. While in his rage he removed the Redfin sign from our front yard and removed the complete doorknob in order to remove Redfins lockbox from our door, which allows the Realtor to gain access into our house to show to potential buyers. He told me again I better not put the sign back up in the yard. He said the house won't be sold until he's ready

> to sell it. He's constantly taunting me to provoke me to get into an argument or fight with him. I'm just totally mentally and physically exhausted. CR1 35.

Keep in mind that on June 5, 2019 Malcolm and Veronica enter into a listing contract for 1808 Blackfoot Trail for 300,000.00 with Redfin. CR1 55-64. So Malcolm was breaking his contract with Redfin.

Another incident of physical intimidation occurred on June 27, 2019. This time Veronica had locked herself in a room of the marital home as Malcolm had unexpectedly entered the residence. For no other reason than to intimidate Veronica, Malcolm broke the door jamb to force the door open. *Id.* While all of this was happening Veronica had her sister Vanessa on the phone. Vanessa heard this exchange between Veronica and Malcolm.

A court may grant a divorce on the ground of cruel treatment. Tex. Fam. Code Ann. § 6.002 (https://statutes.capitol.texas.gov/Docs/FA/htm/FA.6.htm) *See* Appendix B. To be considered "cruel treatment," the conduct of the accused party must rise to such a level as to render the couple's living together insupportable. Id. "Insupportable," for purposes of "cruel treatment," means incapable of being borne, unendurable, insufferable, or intolerable. Henry v. Henry, 48 S.W.3d 468, 473–74 (Tex. App.-Houston [14th Dist.] 2001, no pet.). Mere trivial matters or disagreements do not justify the granting of divorce for cruel treatment. Shankles v. Shankles, 445 S.W.2d 803, 807 (Tex. Civ. App.-Waco 1969, no writ). Acts

occurring after separation can support a finding of cruel treatment. Redwine v. Redwine, 198 S.W.2d 472, 473 (Tex. Civ. App.-Amarillo 1946, no writ).

These actions of Malcolm exceed "mere trivial matters or disagreements. There is more than adequate evidence in support of the trial court's finding of cruelty as a ground for divorce. Veronica showed the chocking incident was the action that ended the marriage when she told Malcolm following the choking ". . . [T]his marriage is over." and he screamed in return ". . . [B]itch it's been over." CR1 34. Veronica is not complaining of mere nervousness or embarrassment, she states "[h]e is constantly taunting me to provoke me to get into an argument or fight him. I'm just totally mentally and physically exhausted." CR1 35. She continues that she is ". . . so tired and scared of what he may do next. I am in fear for my safety when he is around. I just want to sell our home and move on so I can feel safe and not feel on the verge of a nervous breakdown. CR1 36.

At trial Vanessa testified that Veronica had tried to make the marriage work, even ". . . through the verbal, the physical, the mental abuse." RR1 8, lines 12-13. Vanessa saw the state of Veronica and Malcolm's house after the chocking incident. RR1 10, lines18-19. Veronica called Vanessa from the emergency room. RR1 10, lines 8-11. Vanessa stated ". . . even the doctors confirmed that she had been choked and physically attacked." RR1 10, lines 21-22.

Further, Malcolm was cruel in calling John Hancock to ensure that Veronica's

employer, through John Hancock, knew that she had taken out her 401k funds under false pretenses. Malcolm did this on purpose to hurt Veronica. RR1 33, lines 21 – 24. Malcolm called John Hancock on May 16, 2019. See RR1 58. He knew her employer would have to fire her once they investigated and confirmed what he said she had done. Veronica was fired during the "summer, last year," which would have been the summer of 2019. RR1 13 lines 17-25 through 14 lines 1-2. (testimony of Cynthia Shelton).

Once Malcolm's meddling with John Hancock resulted in Veronica losing her job, he began playing games to prevent the sale of the house, knowing it would be difficult for her to pay the mortgage. Further, hindering the sale resulted in upkeep and repairs that had to be covered while showing the house. See Emergency Motion for Appointment of Receiver filed July 15, 2019, CR1 52-89. Also see Emergency Motion to Modify Temporary Order and Motion for Further Temporary Orders. CR1 182-194.

The Trial Court listened to the testimony of Veronica and Malcolm and did not err when it granted Veronica a divorce on the ground of cruelty. Accordingly, this Court should overrule Appellant's issue I, Point C.

C. REPLY ISSUE II:

The Trial Court correctly used its discretion dividing the known community property in a just and right manner and awarding Veronica a

disproportionate share of the known community property (It is a misstatement of fact that Veronica received 100% of the community property, but this statement is corrected in the body of Issue II, Point B)

Reply Issue II, Point B.

Malcolm has no right to complain about property division on appeal, and regardless the Trial Court divided the known community estate in a just and right manner within their judicial discretion.

Malcom was served with Requests for Production, Interrogatories, and Disclosures on September 26, 2019. At a hearing before the Associate Judge on October 16, 2019, he was ordered, and he agreed to respond to the discovery requests by October 26, 2019. CR1 196. On October 16, 2019, the parties also agreed and were ordered to exchange their inventory and appraisement by October 23, 2019 as mediation was scheduled for October 1, 2019. CR1 196. The Associate Judge's Report from the October 16, 2019 hearing was reduced to writing, signed by all parties, and signed by the Judge on November 1, 2019. CR1 198-200. Veronica efiled her sworn Inventory and Appraisement with supporting documents on October 29, 2019. CR2 4-40. Malcolm never filed an Inventory and Appraisement. At the November 1, 2019 mediation, Malcolm provided his first and only response to production, which was mostly objections and a few self-serving documents that were not the documents requested for production. CR1 208-230.

When a party fails to provide evidence of value of community property, that party has ". . . failed to meet [their] burden to establish that the trial court's division

of the community estate was so unjust and unfair as to constitute an abuse of discretion." *In re of,* No. 05-17-00268-CV (Tex. App.—Dallas, May 22, 2018, no pet.); *see also Monroe v. Monroe*, 358 S.W.3d 711, 718 (Tex. App.—San Antonio 2011, pet. denied) (when complaining party does not provide values of property to trial court, that party cannot complain on appeal of property division).

Malcolm relies on Veronica's appraisal because allegedly ". . .Malcolm was not permitted to submit any documents due to the actions of Paul Gomez." App/ant brief p.40. No one told Malcolm he did not need to submit an Inventory and Appraisement (hereafter "I&A"). In fact, on July 22, 2019 the Associate Judge ordered the parties to exchange their I&A **by August 30, 2020**, which can be seen in the Temporary Orders from that hearing that were signed on October 16, 2020. CR1 192-195. The next day, July 23, 2020, an Agreed Motion for Withdrawal of Attorney was filed, signed by Malcom, which reiterated the I&A due date of **August 30, 2020.** CR1 112-116. Further, at the hearing on October 16, 2019, Malcolm and his attorney signed an agreed AJ Report where he agreed to exchange and file I&As with Veronica by **October 23, 2019**. CR1 196. Then on or about November 1, 2019 Malcolm signed the reduced Temporary Orders based on that hearing. These orders also said parties would exchange an I&A by **October 23, 2019**. CR1 198-200. Mediation was held with Patrick Rodgers on November 1, 2019. CR1 201. While Mediation is confidential and Veronica was not privy to

what was discussed in Malcolm's room, it is hard to fathom that Patrick Rodgers did not say anything about Malcolm's lack of an I&A being a problem. Veronica submits Malcolm did not want to share information on the community assets in his control. And, if it was all due to the actions of Paul Gomez as Malcolm alleges in his brief, a new trial or remand is not Malcolm's remedy. His remedy is with Paul Gomez. See below discussion on Reply Issue III.

In relying on Veronica's appraisal, which was filed with the court records but was not introduced into evidence at trial, Malcolm conveniently overlooks the listed unknown values in Veronica's appraisal for community assets Malcolm controlled. *See* CR2 4 (Chase, Malcolm Johnson, Ck/Sv, Value don't know; Wells Fargo, Malcolm Johnson, Ck/Sv, Value don't know). See also CR2 5 (Company Retirement Benefits, Husband's Accounts, Huffines Chrysler Jeep Dodge Plano, Value TBD; Annuities, Husband, TBD; 1996 Shop Shop Boat White, Possession Malcolm, Value?; 1999 Jay Jay Camping Trailer – White, Possession Malcolm, Value?). This inventory was prepared and filed on October 29, 2019. As to the listed furniture and personal items belonging to Malcolm in Veronica's possession, Malcolm had opportunities to get items he wanted. All items did not stay with Veronica.

It is extremely misleading for Malcolm to add all the values on Veronica's appraisal, with the unknown values for his items being conveniently ignored or

counted as 0. How can Malcolm assert Veronica received a greater percentage of community property than she received when he never revealed what he had in his control? There is nothing fair or equitable, just or right, about Malcolm's strategy. A trial court's property division may not be disturbed on appeal unless the complaining party demonstrates from evidence in record that division was so unjust and unfair to constitute abuse of discretion. *In re C.A.S.*, 405 S.W.3d at 384. Here, however, Malcolm is relying on values in the record that have big holes in them. Those holes are there thanks to Malcolm's refusal to engage in a fair divorce and reveal all of his known community property. Malcolm has waived any right he had to complain about the division of property on appeal as he did not provide values to the trial court. Accordingly, this Court should overrule Appellant's issue II, Point B.

Reply Issue II, Point B.1

Issue of Fault Murff Factor

Whether Malcolm was guilty of cruelty and/or adultery in the divorce, leading to a ground of fault for divorce was discussed extensively under Reply Issue I above. Appellee covers the evidence presented supporting the ground of fault in the discussion for Reply Issue I. While Appellee agrees that the trial court based some of its division on the ground of fault, this was not the only ground for a disproportionate division of the known community estate. Accordingly, this Court

should overrule Appellant's issue II, Point B.1.

Reply Issue II, Point B.2

Murff Factor of disparity in the spouse's employment opportunities

The fact is, at trial Veronica was without employment and had been without employment for over six months at that time. RR1 p23 lines 4-5 (no job at time of trial, 2/27/2020) and RR1 p14 lines 1-2 (work conversation about money withdrawn from 401k during summer 2019). Malcolm was employed at the time of trial. RR1 p27 lines 20-21. Further, Malcolm failed to submit complete information on his income as requested in discovery. By failing to provide responses to discovery, Malcolm waived his right to make this argument. Accordingly, this Court should overrule Appellant's issue II, Point B.2.

Reply Issue II, Point B.3

Murff Factor of size of separate estate

There is apparent confusion in Malcolm's argument over separate estate. "Malcolm provided Veronica with a list of what he requested as his separate property in his responses to request for production. Malcolm stated that he was entitled, as his sole and separate property, 50% of the net proceeds of the marital home . . ." App/ant brief 46. These items were community property subject to division, not Malcolm's separate property. A Murff factor of separate estate is inapplicable.

As to division of the known and unknown community estate, as stated previously, Malcolm cannot rely on Veronica's I&A when he did not produce one himself. The values listed do not include the unknown values for Malcolm's undisclosed community property assets.

Veronica also presented her requested relief to the Trial Court and testified at trial as to what she wanted and why. When asked why she was asking for 100% of the house she testified ". . . because of the mental anguish I've been through, from having been exposed to herpes one and two, something I have to live with for the rest of my life. The mental anguish as I said. The physical abuse, the mental abuse, losing my job, all of that." RR1 26.

> Q. Okay. Let me stop you there. So are you – if you got 100 percent of the house -- and Malcolm has assets, but he's never disclosed any of those assets to us; is that correct?
> A. Correct.
> Q. So we don't have an inventory and appraisement from him. We don't have any bank records, anything we asked for to show what his undisclosed assets are; is that correct?
> A. Correct.
> Q. So if you got 100 percent of the house and you could just sell it on your own without having to deal with Malcolm, and also you got the house to help reimburse for your lost wages, for assault on you, the injuries inflicted on you, your past and future medical expenses, your mental anguish, would you feel like that would be a fair and equitable division of the estate?
> A. Yes.
> Q. You get the house, he gets to have all of his undisclosed assets?
> A. Yes.

RR1 26-27.

As a fair and equitable division Veronica also asked for the Infinity, the GMC Yukon, and the Ford F-150 pick-up truck. RR1 27. As well as $12,000.00 for attorney fees. RR1 29-30. Veronica was not granted these requests.

Ultimately, each party kept what was in their name and possession, even if undisclosed, except to the extent that might conflict with the specific awards to each party. Veronica was specifically awarded the home and the Infinity. She was awarded only $5,000.00 in attorney fees as well as the $1,500.00 contempt fees previously awarded.

Appeal courts reverse only if the record demonstrates the trial court clearly abused its discretion, and the error materially affected the just and right division of the community estate. *Jacobs* 687 S.W.2d at 732-33. Here, the record reflects a just and right division of the known and unknown community estate. Accordingly, this Court should overrule Appellant's issue II, Point B.3.

D. REPLY ISSUE III:

By not granting Malcolm a new trial, the Trial Court avoided abusing their discretion as Malcolm has no right to a new trial based on ineffective assistance of counsel as his civil matter does not involve termination of parental rights or involuntary commitment.

Malcolm alleges an issue on appeal based on a right that does not exist for him in this matter. Malcolm requests this Appellate Court to reverse and remand for a new trial due to ineffective assistance of counsel. Effective assistance of

counsel, however, is not a right that extends to this case. Generally, the doctrine of ineffective assistance of counsel does not extend to civil cases. See *In re Interest of P.S.*, 505 S.W.3d 106, 110 (Tex. App.—Fort Worth 2016, no pet.); *McCoy v. Tex. Instruments, Inc.*, 183 S.W.3d 548, 553 (Tex. App.–Dallas 2006, no pet.). Civil cases in which the right to effective assistance of counsel has been found to apply involve the termination of an individual's parental rights, see *In re M.S.*, 115 S.W.3d 534, 544 (Tex. 2003), or the deprivation of liberty, see *Lanett v. State*, 750 S.W.2d 302 (Tex. App.-Dallas 1988, writ denied) (involuntary civil commitment).

Appellant cites no case law supporting his contention that he has a right to effective assistance of counsel, because there is none. There is only case law that this right does not extend to him because this civil case does not concern termination of parental rights or deprivation of liberty. See *In re MS,* 115. S.W.3d at 544 and *Lanett,* 750 S.W.2d at 302.

Since Malcolm has no right to a new trial because of ineffective assistance of counsel, it is impossible for the trial court to have abused its discretion in denying a new trial. There is no need to examine how his counsel allegedly failed him with discovery or at trial. See App/ant Brief, Issue 3, points B, C, and D at pp 50-57. Malcolm was already on his second attorney, so we know he knows how to fire and hire a new attorney. See the order granting Ben Booth's withdrawal, CR1 124-125 and the appearance of Paul Gomez, CR1 120.

In fact, it is surprising that this issue is being raised again on appeal when, at the hearing on the Motion for New Trial, it was pointed out that a new trial was not a remedy for ineffective assistance of counsel, the remedy for ineffective assistance of counsel was for Malcolm to sue his attorney. RR2 21, lines 3-13.

In Malcolm's Issue 3, point E, he pivots to attempting to introduce evidence of his counsel's ineffectiveness, which was not before the trial court, in an effort to cast his ineffective counsel as "new evidence." Appellee has already objected to Appellant's appendix documents related to Malcolm's seeking of sanctions against his attorney. Here Malcolm tries to convince the court that this is "newly discovered evidence," and he should be granted a new trial based on this evidence. However, it logically follows that if ineffective assistance of counsel does not extend to civil cases that do not involve parental termination or involuntary commitment, then documents supporting ineffective assistance of counsel neither support a new trial nor a remand to the trial court.

E. REPLY ISSUE IV:

The Trial Court appropriately awarded Veronica attorney fees on appeal because she requested them, and Malcolm did not.

Malcolm complains that the trial court erred in not making the same attorney fee finding for him as it did for Veronica. Malcolm relies on *In the Interest of T.L.T.* which cites several cases pertaining to appellate attorney fees. See App/ant brief p

59, citing *In the Interest of T.L.T.*, 2018 Tex. App. LEXIS 2025 *10; 2018 WL 1407098; No. 05-16-01367-CV (Tex. App. – Dallas 2018, no pet.).

However, Malcolm skips over one cited statement made in T.L.T: "A movant must affirmatively plead for attorneys' fees unless the issue is waived or tried by consent. *In re Pecht*, 874 S.W.2d 797, 803 (Tex. App.—Texarkana 1994, no writ)." *In re Interest of T.L.T.*, No. 05-16-01367-CV, at *8. Veronica did plead for attorney fees in her Motion for Temporary Orders Pending Appeal. See CR5 11-12, item d. Presently, Veronica is unaware of Malcolm requesting any attorney fees on appeal. Thus, his requested modification by this Appellate Court is impossible to grant as Malcolm did not affirmatively plead for attorney fees. Alternatively, Malcolm requests that this Court strike the award of attorney fees to Veronica in the event Malcolm is unsuccessful on appeal. Malcolm offers no legal support for this request.

CONCLUSION AND PRAYER

Malcolm committed verbal, emotional and physical abuse during the marriage, leaving Veronica desperate to leave the marriage. The Trial Court found that Malcolm committed adultery and cruelty. The Trial Court found that Malcolm gave Veronica multiple sexually transmitted diseases. These findings were derived from the evidence presented by Veronica.

Malcolm plead a multitude of false allegations and the Trail Court found that no evidence was presented to prove such allegations except one which did not produce Malcolm's allegation of wasting community assets. The Trial Court found that Veronica used the 401K asset she obtained to pay down the community debt. This Court should consider that Malcolm has lied to this Court and the Trial Court on multiple occasions, used the proceedings in this Matter to impede the sale of the home, to perpetuate his argument that Veronica committed fraud and wasted community assets —thus, perpetuating more abuse and emotional distress through these proceedings.

Malcolm asserts ineffective assistance of counsel as to why he did not provide the basic documents needed in a traditional divorce. The Court's Record shows that Malcolm was told multiple times by the Court and mediator that documents were needed to reach an equitable division. Malcolm chose to not participate in the litigation and now wants a very expensive do over. The Trial Court's record shows

this Court that Malcolm was continuing to abuse Veronica during the divorce and appeal, continuing to cause her emotional distress.

Veronica was awarded a disproportionate share of the known estate, but not even one hundred percent of the known estate, as Malcolm claims to this Court in some parts of his brief. Malcolm was awarded all property in his possession.

For these reasons, Veronica respectfully requests the following relief:

- That this Court deny Malcolm's claim that ineffective assistance of counsel is grounds for a new trial or for reversal on appeal.
- That this Court affirm the trial court' s finding of adultery.
- That this Court affirm the trial court's finding of cruelty.
- That this Court affirm the trial court's division of the community property based on the testimony of Veronica.
- That this Court affirm the award of $14,000.00 attorney fees to Veronica's attorney as set forth in the Temporary Orders on Appeal.
- Further, that this Court grant her such other relief, both general and special, at law or in equity, to which she may show herself to be justly entitled.

Respectfully Submitted,

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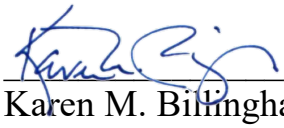
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CERTIFICATE OF COMPLIANCE

I, Karen M. Billingham, certify:

1. This brief complies with the type-volume limitation of TEX. R. APP. P. 9.4(i)(2)(B) because it contains 8,770 words, excluding the parts of the brief exempted by TEX. R. APP. P. 9.4(i)(1).

2. This brief complies with the typeface requirements of TEX. R. APP. P. 9.4(e) because it has been prepared in a proportionally spaced typeface using Microsoft Word for Windows in Times New Roman 14-point font.



Karen M. Billingham

CERTIFICATE OF SERVICE

The undersign certifies that a true and correct copy of the foregoing Appellee's Brief has been served on all counsel of record via electronic service on this 15th day of February 2021.



Karen M. Billingham

APPENDIX

1. June 24, 2020 Temporary Orders During Appeal
2. Texas Family Code Sections 6.002 and 6.003
3. Texas Family Code Section 7.001

NO. DF-19-12398

IN THE MATTER OF THE MARRIAGE OF	§	IN THE DISTRICT COURT
MALCOLM GREGORY JOHNSON AND VERONICA MARIE POWELL-JOHNSON	§	255TH JUDICIAL DISTRICT
	§	DALLAS COUNTY, TEXAS

TEMPORARY ORDERS DURING APPEAL

On June 11, 2020 the parties came before the court for a hearing on requested Temporary Orders During Appeal.

Appearances

Petitioner, MALCOLM GREGORY JOHNSON, appeared in person and through attorneys of record, LINDSEY M. RAMES and NICOLE CAWOOD-ANDERSON, and announced ready for hearing.

Movant and Respondent, VERONICA MARIE POWELL-JOHNSON, appeared in person and through attorney of record, KAREN M. BILLINGHAM, and announced ready for hearing.

Findings

The Court finds that Movant timely filed her Motion for Temporary Orders During Appeal under Texas Family code section 6.709(h) and Texas Rule of Appellate Procedure 26.

The Court finds that the following orders respecting the property and parties are necessary and equitable for the preservation of the property and for the protection of the parties during MALCOLM GREGORY JOHNSON'S appeal of the Trial Court's judgment.

Property and Parties

IT IS ORDERED that Movant has the right to occupy the residence at 1808 Blackfoot Trail, Mesquite, Dallas County, Texas 75149 (hereafter Blackfoot Residence), and more particularly described as:

> Lot 19, Block 6, Replat of Indian Trails, an addition in Mesquite, Dallas County, Texas, according to the map/plat recorded in Volume 86140, Page 3370 Map/Plat Records, Dallas County, Texas.

The Court finds that pursuant to the Final Decree of Divorce, Movant has the authority to sell the Blackfoot Residence. Although Respondent has filed a lis pendens regarding the Blackfoot Residence, there is no order of the Court prohibiting the sale. IT IS ORDERED that all proceeds of the sale of the residence pending appeal are to be deposited in the registry of the Court.

The Court makes no orders regarding attorney's fees that were previously ordered in this matter.

Respondent IS ORDERED to pay temporary spousal support in the amount of $1,100.00 per month, with the first payment being due and payable on July 1, 2020 and a like payment being due and payable on the first day of every month thereafter during the course of the appeal until the Blackfoot Residence is sold. If the Blackfoot Residence sells, then the temporary spousal support ceases immediately. No retroactive temporary spousal support is ordered.

Respondent IS ORDERED to pay attorney's fees to Movant's attorney for post-trial motions and the appeal in the amount of $14,000.00 by ~~not later than July 30, 2020 at noon at Movant's attorney's office, located at 18601 Lyndon B Johnson Freeway, Suite 401, Mesquite, Texas 75150.~~ in the event Respondent's appeal to the Fifth Court of Appeals is successful. Respondent is ordered to pay Movant's attorney $14,000.00 attorneys fees 18601 LBJ Freeway, Suite 401, Mesquite, TX within 7 days of a mandate from the Fifth Court of Appeals affirming the final Court's Final Decree of Divorce.

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Duration

These Temporary Orders shall continue in force until the Appellate Court has ruled on Petitioner's appeal or further orders of this court modifying these orders.

SIGNED on June 24, 2020

Asst JUDGE PRESIDING

APPROVED AS TO FORM ONLY:

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This order subject to Motion for Reconsideration

APPX. 2

FAMILY CODE

TITLE 1. THE MARRIAGE RELATIONSHIP

SUBTITLE C. DISSOLUTION OF MARRIAGE

CHAPTER 6. SUIT FOR DISSOLUTION OF MARRIAGE

SUBCHAPTER A. GROUNDS FOR DIVORCE AND DEFENSES

Sec. 6.002. CRUELTY. The court may grant a divorce in favor of one spouse if the other spouse is guilty of cruel treatment toward the complaining spouse of a nature that renders further living together insupportable.

Added by Acts 1997, 75th Leg., ch. 7, Sec. 1, eff. April 17, 1997.

Sec. 6.003. ADULTERY. The court may grant a divorce in favor of one spouse if the other spouse has committed adultery.

Added by Acts 1997, 75th Leg., ch. 7, Sec. 1, eff. April 17, 1997.

APPX.3

FAMILY CODE

TITLE 1. THE MARRIAGE RELATIONSHIP

SUBTITLE C. DISSOLUTION OF MARRIAGE

CHAPTER 7. AWARD OF MARITAL PROPERTY

Sec. 7.001. GENERAL RULE OF PROPERTY DIVISION. In a decree of divorce or annulment, the court shall order a division of the estate of the parties in a manner that the court deems just and right, having due regard for the rights of each party and any children of the marriage.

Added by Acts 1997, 75th Leg., ch. 7, Sec. 1, eff. April 17, 1997.

Automated Certificate of eService

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Attorney BillinghamLaw on behalf of Karen Billingham
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Status as of 2/22/2021 8:29 AM CST

Associated Case Party: Malcolm Johnson

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Lindsey Rames		lindsey@rameslawfirm.com	2/15/2021 4:49:39 PM	SENT

Associated Case Party: Veronica Powell-Johnson

Name	BarNumber	Email	TimestampSubmitted	Status
Karen M. Billingham	783659	attorney@billinghamlaw.com	2/15/2021 4:49:39 PM	SENT